

25CHCV01835 25CHCV01835

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PLAINTIFF EMELY BRIANA CASILLAS'S MOTION TO COMPEL
NONPARTY TRUKSPECT, INC. TO COMPLY WITH DEPOSITION SUBPOENA FOR PRODUCTION OF
BUSINESS RECORDS

Motion filed on April 17, 2026.

MOVING PARTY: Plaintiff Emely Briana Casillas

RESPONDING PARTY: None

NOTICE: Insufficient as to nonparty Trukspect, Inc.

RELIEF REQUESTED: Order compelling nonparty Trukspect, Inc. to produce business
records responsive to Plaintiff's deposition subpoena and monetary sanctions.

RULING: Denied.

DISCUSSION

A party seeking discovery from a nonparty may obtain
discovery by deposition subpoena for production of business records. (Code Civ.
Proc., § 2020.010.) If a deponent fails to produce documents specified in a

deposition subpoena, the party seeking discovery may move for an order compelling production. (Code Civ. Proc., § 2025.480, subd. (a).) The motion “shall be made no later than 60 days after the completion of the record of the deposition.” (Code Civ. Proc., § 2025.480, subd. (b).) For a business-records subpoena, the nonparty must comply or not comply on the date specified for production. The subpoenaing party then has 60 days to meet and confer and, if still unsatisfied, move to compel. (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1033-1035.) Meet and confer efforts do not extend the mandatory 60-day deadline. (*Id.* at p. 1034.)

Code of Civil Procedure section 1987.1, subdivision (a) permits the Court, on a motion reasonably made, to direct compliance with a subpoena, including a deposition subpoena, on terms the Court declares appropriate. In making an order under section 1987.1, the Court may award reasonable expenses, including attorney’s fees, if the Court finds the motion was made or opposed in bad faith or without substantial justification, or that one or more requirements of the subpoena were oppressive. (Code Civ. Proc., § 1987.2, subd. (a).)

A “written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail, or electronic service, at an address, or electronic service address, specified on the deposition record.” (Cal. Rules of Court, Rule 3.1346.)

Here, Plaintiff personally served nonparty Trukspect with a deposition subpoena for production of business records on January 26, 2026. The subpoena required production on February 11, 2026. (Oknyansky Decl. ¶¶ 3-4, Ex. 1.) Plaintiff states that Trukspect did not produce records, serve objections, move to quash, or communicate with Plaintiff by the production date. (Oknyansky Decl. ¶¶ 6-9.) The record was complete no later than February 11, 2026 because Trukspect had either complied with the subpoena or it had not. Plaintiff therefore had until April 13, 2026, after extension for the weekend, to file this motion. Plaintiff filed the motion on April 17, 2026. The motion is therefore untimely.

Separately, Plaintiff has not filed a proof of service showing that the notice of motion and moving papers were personally served on

Trukspect, or that Trukspect agreed to accept service by mail or electronic service under rule 3.1346. The proof of service shows electronic service on Defendants' counsel only.

Because the motion is denied, Plaintiff is not entitled to sanctions. Even if properly considered, the sanctions request is not properly noticed. Plaintiff's notice seeks sanctions "against Defendant or its counsel," not Trukspect, while the memorandum requests sanctions against Trukspect and inconsistently refers to \$1,810.00 before requesting \$2,860.00.

CONCLUSION

Plaintiff Emely Briana Casillas's motion to compel nonparty Trukspect, Inc. to comply with deposition subpoena for production of business records is DENIED. Plaintiff's request for monetary sanctions is DENIED.